

LAW AND MOTION TENTATIVE RULINGS

DATE: JUNE 23, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

Nos. 21CV02110, 21CV01946, 21CV02782, 22CV02565

ESPINOZA et al. v. ENCOMPASS COMMUNITY SERVICES

**(UNOPPOSED) MOTION FOR FINAL APPROVAL OF CLASS ACTION AND
PAGA SETTLEMENT**

Based on the pleadings submitted, the settlement is entitled to a presumption of fairness and no evidence having been presented to overcome the presumption, the motion for final approval is granted. The Court will sign the proposed order and judgment, and will set a non-appearance hearing date to confirm the distribution.

No. 26CV01693

SILVA v. SILVA

**PLAINTIFF’S EX PARTE APPLICATION REGARDING IMMEDIATE
RETURN OF VEHICLE**

The application is denied.

Plaintiff seeks the return of a vehicle she used during her annulled marriage to defendant. Plaintiff’s declaration filed June 16, 2026, states the vehicle she seeks returned (2020 Ford Expedition) was her primary and exclusive vehicle and she contributed to its payments and maintenance. She declares the Family Court never issued an order requiring the vehicle be returned to Gavin Silva. She describes that on May 12, 2026, Mr. Silva repossessed the vehicle in the parking lot of Scotts Valley High with the couple’s twin sons present.

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Based on the Court's review of the companion family law action (25FL00030), the vehicle was ordered returned to defendant by March 1, 2026, if plaintiff could not obtain financing. (Minute Order, December 2, 2025, 25FL00030.) Based upon the evidence before it, this Court will not overturn the prior family court order. Further, plaintiff's complaint does not set forth any cognizable claim for conversion or replevin.

No. 25CV01226

AMERICAN EXPRESS NATIONAL BANK v. PETERSON

**(UNOPPOSED) PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT/
ADJUDICATION**

The unopposed motion is granted. Judgment will be entered in favor of plaintiff.

I. BACKGROUND

This is a limited jurisdiction collection matter filed by plaintiff American Express against defendant Tucker Peterson seeking \$15,227.97 for an unpaid credit card debt. There is a single cause of action for breach of contract. Defendant is self-represented and filed a general denial. Despite proper service, defendant did not oppose the motion.

II. UNDISPUTED MATERIAL FACTS

Defendant applied to plaintiff for a credit card account and entered into written credit card account agreement with plaintiff for the account number ending in 1001 (the "Account"). (Plaintiff's Separate Statement of Undisputed Material Facts ("UMF") 1.) Defendant agreed to be bound by the terms and conditions set forth in the Cardmember Agreement when defendant applied for, received or used the credit card account. In addition, the Cardmember Agreement provides that use of the card constitutes acceptance of the agreement. (UMF 2.) After receiving the credit card, purchases were made by the use of the account and the charging of various goods, services and cash advances. Plaintiff complied with its obligations under the Agreement by paying vendors for all charges that were made on defendant's account. The principal balance of \$15,227.97 prayed for in the complaint results from defendant's use of said account. (UMF 3.)

Payments and charges are duly reflected on the computerized credit card record regularly kept and maintained by plaintiff in connection with defendant's credit card account. Those records were provided on a monthly basis in the form of billing statements to defendant reflecting all debits and credits to defendant's credit account. (UMF 4.) There is no record that there is any unresolved dispute between the parties and/or that defendant asserted a valid